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IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL
CIRCUIT IN AND FOR GILCHRIST COUNTY, FLORIDA

CASE NO. 21-2022-000042-CA

JORDAN BARRON,

Plaintiff,

v.

BLAC INVESTMENTS, INC., a Florida corporation, d/b/a TRI COUNTY METALS, JOSH BRYANT, an individual, MESHAWN HAGAN, an individual, CHARLES E. SEAGER, an individual and MAZZELLA NEW TECH CORPORATION, an Ohio Corporation, d/b/a New Tech Machinery,

Defendants.
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DEFENDANTS, BLAC INVESTMENTS, INC., D/B/A TRI COUNTY METALS, JOSH BRYANT AND MESHAWN HAGAN'S RESPONSE TO PLAINTIFF'S SECOND REQUEST FOR PRODUCTION OF DOCUMENTS

Defendants, BLAC INVESTMENTS, INC., d/b/a TRI COUNTY METALS, JOSH BRYANT and MESHAWN HAGAN, by and through the undersigned attorneys, responds to the Second Request for Production of Documents filed by the Plaintiff, JORDAN BARRON, dated May 15, 2025, as follows:

1. A true and correct copy of any and all statements, whether written, oral or recorded, in whatever fashion, taken of the Plaintiff, and/or Plaintiff's agents, servants, employees, etc., in regard to the subject matter of this litigation.

RESPONSE: None other than the deposition of the Plaintiff previously taken in this case.

2. A true and correct copy of any and all statements, whether written, oral or recorded in whatever fashion, taken of all independent witnesses or other persons by the Defendants with regard to the subject matter of this lawsuit.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. Without waiving said privileges and objections, none that the Defendants are aware of as of this time other than what may be contained in the OSHA Report for this incident. Also, see Privilege Log.

3. Any and all memoranda, notes, correspondence and any and all other documents or tangible things which, in any way, show or purport to show any communications between the Defendants, and the Defendants' servants and/or employees on the one hand, and the Plaintiff, Plaintiff's agents, servants, employees, and/or attorneys on the other hand concerning the subject matter of this litigation.

RESPONSE: Objection, this Request as written is overbroad, vague and unlimited in time, scope and provides no reference or limitation. As written, this Request could encompass communications between the Defendants and counsel which would be privileged. It could also include emails and correspondence between counsel regarding this case such as for scheduling etc. Otherwise, only correspondence from counsel for Plaintiff either relating to this case or the Plaintiff's worker's compensation case/claim and correspondence of representation from Plaintiff's prior counsel.

4. Copies of any and all correspondence to the Plaintiff from the Defendants relative to any of the claims asserted by the Plaintiff.

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RESPONSE: Objection, this Request as written is overbroad, vague and unlimited in time and scope. Otherwise, none by these Defendants.

5. All documents exchanged between Defendants and the Plaintiff relating to any claim referenced in this lawsuit.

RESPONSE: Objection, this Request as written is overbroad, vague and unlimited in time and scope. Otherwise, only correspondence from counsel for Plaintiff either relating to this case or the Plaintiff's worker's compensation case/claim and correspondence of representation from Plaintiff's prior counsel.

6. All documents evidencing or relating to communications between Defendants and the Plaintiff relating to any claim referenced in this lawsuit.

RESPONSE: Objection, this Request as written is overbroad, vague and unlimited in time and scope. Otherwise, none other than previously provided in discovery in this case or referenced in response to Request #4 and #5 above.

7. All documents exchanged between You and any third party, including but not limited to adjusters, consultants, brokers, agents, insurers, and reinsurers, relating to any claim referenced in this lawsuit.

RESPONSE: Objection, this Request as written is overbroad, vague and unlimited in time, scope and provides no reference or limitation. As written, this Request could encompass communications between the Defendants and counsel and the Defendants and the adjusters and insurers handling this matter, as well as communication between counsel adjusters and insurers handling this matter regarding this case. All of this would be privileged and covered by attorney client and/or work product privileges. See attached Privilege Log.

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8. All documents evidencing or relating to any of Your internal communications concerning any claim referenced in this lawsuit.

RESPONSE: Objection, this Request as written is overbroad, vague and unlimited in time and scope would potentially involved work product communications regarding this claim and the ensuing litigation. See attached Privilege Log.

9. All documents relating to any claim referenced in this lawsuit generated by, prepared by, prepared for, or reviewed by a consulting expert who is not designated to testify in the trial of this matter whose opinions or reports have been reviewed by or relied upon by experts who may testify at the trial of this matter.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. See attached Privilege Log.

10. The curriculum vitae, including a bibliography, for each consulting expert who is not designated to testify at the trial of this matter and whose opinions or reports have been reviewed by or relied upon by experts who may testify at the trial of this matter.

RESPONSE: See Response to Request # 9 above. See attached Privilege Log.

11. All documents used by You for the purpose of refreshing the recollection of any witness prior to testifying at any hearing, deposition, or trial of this matter.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. Without waiving said objections, this Defendant would state the video of the incident, statements and records contained

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is the OSHA materials and as needed Employee Handbook and manual for the machine involved.

12. For each fact for lay witness You expect to testify at the trial of this matter, all documents reviewed by, prepared by, relied upon, provided to, or received from each such witness relevant to this matter.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. Otherwise, without waiving said privileges and objections, Defendant would state undetermined as of this time.

13. The entire contents of all claims or investigative files created in response to any claim referenced in this lawsuit. This request includes, but is not limited to, all documents that relate to any review, handling, discussion, evaluation, processing, investigation, supervision, or response to any claim referenced in this lawsuit.

RESPONSE: Objection, this request would encompass communications between the Defendants and counsel and the Defendants and the adjusters and insurers handling this matter, as well as communication between counsel adjusters and insurers handling this matter regarding this case. It would also include adjuster and carrier notes, comments and internal discussions regarding this case and claims, none of which the Plaintiff would be entitled to in this action. All of this would be privileged and covered by attorney client and/or work product privileges. See attached Privilege Log. Further, said information would be inadmissible and unlikely to lead to the discovery of admissible information.

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14. All documents evidencing communications related to Defendants' investigation of any claim referenced in this lawsuit.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. See attached Privilege Log.

15. All documents supporting or relating to any affirmative defenses asserted by You.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. Without waiving said privileges and objections, Defendants would state see documents and records produced or received from any party of source previously produced in this case as well as the deposition of the Plaintiff. Otherwise, undetermined as of this time.

16. All documents identified or referred to in Your answers to the first set of interrogatories in this lawsuit.

RESPONSE: To the extent identified or referred to, see attached.

17. All documents You reviewed or relied on in answering the first set of interrogatories in this lawsuit.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. As written, this Request could encompass communications between the Defendants and counsel and the Defendants and the adjusters and insurers handling this matter, as well as communication between counsel adjusters and insurers handling this matter regarding this case. All of this would be privileged and covered by attorney client and/or work product privileges. Otherwise, see attached documents.

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18. All documents relating to the Plaintiff that You obtained from any source other than the Plaintiff.

RESPONSE: Defendants would state see documents and records produced or received from any party of source previously produced in this case. Further, this Request calls for work-product and/or attorney client privilege information.

19. With respect to any claim that is the subject matter of this lawsuit, all documents supporting each of the eleven affirmative defenses asserted by You.

RESPONSE: Objection, this Request calls for potential work product and/or attorney client privilege information. Without waiving said privileges and objections, Defendants would state see documents and records produced or received from any party of source previously produced in this case. Otherwise, none as of this time.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been served on all Counsel of Record via the Florida E-Filing Portal this 26th day of August, 2025.

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